LAMBDA LEGAL

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5/3/2023 3:56 PM
Velva L. Price
District Clerk
Travis County
D-1-GN-22-002569
Norma Ybarra

May 1, 2023

Sent Via Email at Johnathan.Stone@oag.texas.gov, Heather.Dyer@oag.texas.gov

Johnathan Stone
Heather Dyer
Office of the Texas Attorney General
P.O. Box 12548
Austin, Texas 78711-2548

RE: Rule 11 Agreement and lnformal Stay of Trial Court Proceedings in *PFLAG, Inc., et al. v. Abbott, et al.*, D-1-GN-22-0002569, ln the 459th District Court, Travis County

Dear Johnathan and Heather:

This letter memorializes the following Rule 11 agreement between all Plaintiffs and their counsel of record in this cause, Defendant the Texas Department of Family and Protective Services ("DFPS"), Defendant DFPS Commissioner Stephanie Muth (the "Commissioner")[1] and all of Defendants' counsel of record in this cause[2]:

1. **First Amended Agreed Level 3 Scheduling Order Preempted:** All settings, deadlines, and the October 23, 2023 trial date in the First Amended Agreed Level 3 Scheduling Order, signed and entered February 14, 2023, and all deadlines in the Rule 11 Agreement entered April 10, 2023 are lifted.[3] The limitations on time for oral depositions and number of interrogatories remain in effect.

2. **Informal Stay of Trial Court Proceedings:** The Parties and their counsel agree they will not seek an order to stay this cause from the trial court, unless and until this Rule 11 agreement is terminated in accordance with Term 4 below. The Parties agree they will not file any substantive motions, notices, pleadings or other documents with the trial court, serve any additional discovery requests, make demands for responses to outstanding discovery requests, serve any deposition notices (on each other, other parties to the suit or nonparties), serve any discovery

[1] Jamie Masters was the Commissioner of the DFPS at the time this suit was filed and was named as a Defendant in her official capacity. Masters has since been replaced in the role of DFPS Commissioner by Stephanie Muth, who, in her official capacity, is now the appropriate Defendant.
[2] Plaintiffs and Defendants DFPS and the Commissioner shall collectively be referred to as the "Parties" herein.
[3] This Rule 11 agreement shall not affect any hearing or correspondence with the Court regarding Plaintiffs' Motion for Entry of a Confidentiality and Protective Order.

on nonparties, or otherwise proceed with the development of the case in the trial court, and all counsel agree they will not take any such actions on behalf of the Parties to this agreement or any other party to the suit. This does not preclude the Parties or counsel from filing notices of appearances, changes of counsel, *pro hac vice* motions, status reports or other filings that do not require responses from the Parties, other parties to the suit or nonparties, and do not implicate either directly or indirectly the substance of the dispute, particularly for the purpose of avoiding dismissal for want of prosecution. However, the Parties and their counsel may notify the trial court that deadlines have been lifted and settings have been passed, or urge the trial court to rule on motions it has already heard. This informal stay of the trial court proceedings does not apply to or affect any proceedings in any appellate court or the Texas Supreme Court.

3. **Stay of Investigations:** During the pendency of this Rule 11 agreement, Defendants DFPS and the Commissioner will comply with the July 8, 2022 and September 16, 2022 injunctions in this cause, attached hereto as Exhibits A and B.

4. **Duration/Termination:** This Rule 11 agreement shall remain in effect until:

   a. all Parties through their counsel of record agree in writing that this Rule 11 agreement is terminated; or

   b. fourteen days after a Party provides written notice to the opposing Parties that it intends to terminate this agreement; or

   c. a court orders the termination of this agreement; or

   d. both:

      i. a final opinion has been issued in the appeal in Case No. 03-22-00587-CV (into which Case No. 03-22-00420 has been consolidated) in the Third Court of Appeals and any associated proceedings in the Texas Supreme Court that may occur, and

      ii. the trial court has ruled on Defendants' Plea to the Jurisdiction.

5. **Breach and Enforcement:** If any Party believes another Party has materially breached this agreement and the Parties are unable to remedy the breach, the nonbreaching Party may ask the Court to enforce this agreement or seek sanctions from the trial court as appropriate.

6. **Court Orders**: Nothing in this Rule 11 agreement supersedes any relief, including but not limited to temporary injunctive relief, that has been or may be granted in

this lawsuit or any appeals therefrom by the trial court, the Third Court of Appeals, the Texas Supreme Court, or any other court. The termination of this agreement shall have no impact on the validity or enforceability of any court order entered in this lawsuit or any appeal therefrom.

If this letter accurately reflects the terms of our Rule 11 agreement, please sign below.

Very truly yours,

LAMBDA LEGAL DEFENSE AND
EDUCATION FUND, INC.

Agreed: May 3, 2023

Shelly L. Skeen
Senior Attorney
Pronouns: she/her/hers

AGREED:

Johnathan Stone
Johnathan Stone/Heather Dyer
Attorneys for Defendants
Date: May 3, 2023